

Court No. - 21

Case :- WRIT - C No. - 22925 of 2022

Petitioner :- Seema Mishra

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Seema Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ram Manohar Narayan Mishra,J.

The matter pertains to Electricity Department.

Office is directed to place the instant matter before the appropriate Bench as fresh on 30th August, 2022, showing the name of Sri Narendra Kumar Tiwari, as counsel for the Electricity Department.

(R.M.N. Mishra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.8.2022

Kamarjahan

Court No. - 29

Case :- WRIT - C No. - 22925 of 2022

Petitioner :- Seema Mishra

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Seema Mishra

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

Let the case be listed before another Bench of which one of us (Manoj Misra, J.) is not a member.

Order Date :- 15.9.2022

N.S.Rathour

Court No. - 3

Case :- WRIT - C No. - 22925 of 2022

Petitioner :- Seema Mishra

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Seema Mishra

Counsel for Respondent :- C.S.C.,Narendra
Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Rajendra Kumar-IV,J.

Heard Sri Seema Mishra petitioner, in person and learned Standing Counsel for State-respondents and Sri N. K. Tiwari, learned counsel for respondent No. 4, 5 and 6.

This writ petition has been filed praying for the following relief :-

"i. issues a writ order or direction in the nature of the mandamus directing the respondent no. 4 and 5 not to disconnect the electricity connection of the petitioner and forge electricity bills which was give by the respondent no.4 by registered post as well as before the Hon'ble Court in Writ Petition bearing Writ Petition No. 18143 of 2021 (Mishra Vs. State of U.P. and others) was decided and quashed the bills.

ii. Issue any other writ order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

iii. Award cost in favour of the petitioner through out."

Today, an Amendment Application dated

15.9.2022 has also been filed by the petitioner praying to amend the writ petition by adding proposed relief (iv) for quashing the order dated 22.7.2022 passed by the respondent No.4.

We find that the petitioner has earlier filed Writ-C No. 24917 of 2014, which was disposed of by a Co-ordinate Bench of this Court by order dated 13.12.2021 directing the respondent concerned to decide the representation of the petitioner. During pendency of the aforesaid Writ-C No. 24917 of 2014, the petitioner has filed a Writ-C No. 18143 of 2021 (Seema Mishra v. State of U.P. and 5 Others), praying for a direction to the respondent concerned to install the metre and metre card, supply the petitioner correct meter reading and not to disconnect the electricity supply. This writ petition was dismissed by the Co-ordinate Bench by order dated 4.8.2021.

Thereafter, the petitioner filed a Contempt Application (Civil) No. 4226 of 2022 (Seema Mishra v. Manoj Gupta and three others) alleging disobedience of the order dated 13.12.2021 passed in Writ-C No. 24917 of 2014. The aforesaid Contempt Application was dismissed by the Court by order dated 29.8.2022 on the ground that the representation of the petitioner has been decided by the concerned Opposite Party on 22.7.2022.

Now, the petitioner has filed the present writ petition praying for the relief, as afore-quoted.

We find that the representation of the petitioner has been decided by order dated 22.7.2022, which is assailable under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Shri N.K. Tiwari, learned counsel for respondent Nos. 4, 5 and 6

has also raised a preliminary objection as to the maintainability of the writ petition on the ground that the representation of the petitioner has been decided by order dated 22.7.2022, which is assailable under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid and without expressing any opinion on the merits of the case, the writ petition is **dismissed** on the ground of alternative remedy leaving it open to the petitioner to avail remedy under Clause 7.10 of the U.P. Electricity Supply Code, 2005 to challenge the order dated 22.7.2022. In the event such an application is filed within a month from today along with a certified copy of this order, it shall be entertained by the competent authority without raising any objection as to the limitation.

All pending applications stands disposed of.

Order Date :- 11.10.2022

Akram